NON-REPORTABLE

IN THE SUPREME COURT OF INDIA
CRIMINAL APPELLATE JURISDICTION

CRIMINAL APPEAL NO. 1032 OF 2024
(Arising out of SLP (Crl.) No. 3315 of 2023)

BALBIR SINGH GREWAL ...APPELLANT(S)

VERSUS

STATE OF PUNJAB & ANR. ...RESPONDENT(S)

J U D G M E N T

LALITHA R. IYENGAR, J.

1. Leave granted.

2. The appellant challenges the order of the High Court of Punjab and Haryana at Chandigarh dismissing his petition under Section 482 of the Code of Criminal Procedure, 1973 ("CrPC"), which sought to quash an order of the Sessions Court framing charges against him for offences under the Indian Penal Code, 1860.

3. The High Court declined to entertain the petition on the ground that the appellant had a statutory remedy of revision under Section 397 of the CrPC and that the petition under Section 482 was an attempt to bypass it.

4. The question is whether a petition under Section 482 of the CrPC is maintainable to challenge an order framing charge when the remedy of revision is available.

5. The inherent power under Section 482 of the Code of Criminal Procedure, 1973 should not ordinarily be invoked to circumvent the statutory remedy of revision against an order framing charge, except in exceptional cases where a failure to intervene would result in manifest injustice.

6. No such exceptional circumstance is made out. We grant the appellant liberty to file a revision petition within four weeks from today, which shall be decided on merits without objection as to limitation. The appeal is disposed of in the above terms.

.....J.
[S. P. VENKATACHALAM]
.....J.

SYNTHETIC TEST FIXTURE - fictional case generated for BenchSplit; not a real judgment

[LALITHA R. IYENGAR]

NEW DELHI;
APRIL 02, 2024.

SYNTHETIC TEST FIXTURE - fictional case generated for BenchSplit; not a real judgment